
INFORMATION SECURITY TERMS AND CONDITIONS

信息安全条款和条件

Porsche (China) Motors Limited, (hereinafter the “**Client**”);
保时捷（中国）汽车销售有限公司（以下简称“客户”）;

And
和

[Schenker China Ltd. Dongguan Branch], (hereinafter the “**Vendor**”).
[全球国际货运代理（中国）有限公司东莞分公司]，（以下简称“**服务提供商**”）。

have entered into an agreement for the provision of [Warehousing Agreement] (the “**Contract**”).
已就提供[Warehousing Agreement]订立一份合同（“**合同**”）。

The Client and the Vendor are hereinafter referred to collectively as the “**Parties**” and each individually as a “**Party**”.
客户与服务提供商以下合称为“**双方**”，单称为“**一方**”。

This Information Security Terms and Conditions (hereinafter referred to as this “**Information Security Conditions**”) shall be attached to the Contract as Annex [21] and are applicable to the processing, use, and protection of any Personal Data, Clients Materials, Porsche Trademarks and Confidential Information as defined under Clause 1 of the Information Security Conditions (hereinafter collectively referred to as “**Project Data**”) collected, acquired, and generated in relation to the Contract by the Vendor or any third party engaged by the Vendor for providing the services to Client including but not limited to Clients Sub-Contractors and Affiliates as defined below.

本信息安全条款和条件（以下简称“**信息安全条款**”）应作为合同的附件[21]，并适用于处理、使用和保护任何如本信息安全条款第一条项下规定的由服务提供商或由其聘用的任何第三方为向客户（包括如下文定义的客户分包商和关联方）提供服务而收集、获取和产生的与合同相关的个人数据、客户材料、保时捷商标和保密信息（以下合称“**项目数据**”）。

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1 DEFINITIONS/定义

- 1.1 **"Affiliate"** means, with respect to the Client, (a) its ultimate holding entity; (b) an entity directly or indirectly controlled by it; or (c) an entity directly or indirectly controlled by its ultimate holding entity. For the purposes of the Contract, an entity is controlled directly or indirectly by another entity if it directly or indirectly holds more than half of the issued share capital of the first mentioned entity.

“关联方”一词，就客户而言，指(a)其终极控股实体；(b)直接或间接受其控制的实体；或(c)直接或间接受其终极控股实体控制的实体。就合同的目的而言，如果某一实体直接或间接持有另一实体已发行股本的比例超过了一半，则前一实体即直接或间接控制了该另一实体。

- 1.2 **"Clients Materials"** means all deliverables and reports (in whatever form or medium delivered to the Client) which contain data or information unique to the Client or which are prepared by the Vendor at the request of the Client pursuant to the Contract.

“客户材料”指含有客户独有的数据或信息或者提供商应客户的要求而按合同编制的所有应交成果和报告（无论以任何形式或媒介向客户交付）。

- 1.3 **"Confidential Information"** means (a) any information designated by the Client as confidential, which includes but is not limited to the discussions between the Parties with respect to the subject matter of the Contract and the business, marketing and technical plans and their implementation proposals and plans as exchanged and communicated by the Client to the Vendor and other information relating to intellectual property, regardless of in what form and by what means such information is disclosed and whether such information is tagged as confidential; and (b) any information relating to the Client's product plans, product designs, product costs, product prices, product names, finances, marketing plans, business opportunities, personnel and lists of customers and/or prospects, research, development or know-how, except such information which the Client agrees in writing is not confidential.

“保密信息”指(a)客户指定为保密的任何信息，包括但不限于双方之间关于合同标的事项的所有讨论，客户向提供商交流和告知的业务、营销和技术计划及其执行方案和计划，以及与知识产权有关的其他信息，而不论该等信息是以何种形式存在，也不论该等信息是以何种方式披露，也不论该等信息是否标为保密信息；及(b)与客户的产品计划、产品设计、产品成本、产品价格、产品名称、财务、营销计划、商机、人员、研究、开发或诀窍有关的任何信息，但客户书面同意不属于保密性质的该等信息除外。

- 1.4 **"Personal Data"** refers to all kinds of information recorded by electronic or otherwise that can be used to independently identify or be combined with other information to identify natural persons' personal information including but not limited to: natural persons' names, dates of birth, ID numbers, biologically identified personal information, addresses and telephone numbers, etc.

“个人信息”指通过电子形式或其他形式储存的任何能够独立地或与其他信息结合，用以识别或自然人的个人信息的信息，该等信息包括但不限于：自然人的名称、出生日期、身份证件号码，生物识别的个人信息，地址和电话号码等。

- 1.5 **"Porsche Trademarks"** means any and all names, logos, trademarks or other marks owned by the Client and/or its Affiliates including but not limited to Porsche, Porsche Crest and 保时捷, whether registered or not registered.

“保时捷商标”指客户和/或其关联方拥有的名称、标识、商标或其他标记，无论注册与否，包括但不限于“Porsche”、“Porsche Crest”和“保时捷”。

- 1.6 **"Services"** means such services that the Vendor shall provide to the Client, as described in the Contract.

“服务”指提供商按照合同所述向客户提供的服务。

- 1.7 **"Sub-Contractors"** means any person and/or entity named in the Contract as a sub-

contractor, or any person and/or entity appointed as a sub-contractor, for providing or receiving the Services; and the legal successors in title to each of these persons and/or entities.

“分包商”指本合同提及的分包商，或为提供或接收服务而被聘用的任何个人和/或实体；以及该等个人和/或实体的相应法定权利继承人。

2 INFORMATION SYSTEM SECURITY POLICIES/信息系统安全政策

- 2.1 [Data Security] The Vendor shall undertake to the Client that it will pay special attention to assuring Client's Project Data security based on the nature of the Project Data and agrees to abide by, maintain, and implement a set of information system security policies that include but are not limited to formulating internal security management systems and operating instructions in accordance with applicable laws and regulations and the provisions stated in the Contract and this Information Security Conditions.

[数据安全] 服务提供商应向客户承诺，其将特别注意根据项目数据的性质，确保客户项目数据的安全，并同意遵守、维护并实施一套信息系统安全政策，包括但不限于根据适用的法律法规以及合同和本信息安全条件的规定，制定内部安全管理体系和操作指南。

- 2.2 [Cybersecurity Personnel] The Vendor undertakes to appoint Vendor's Personnel responsible for cybersecurity matters (hereafter referred to as “**Vendor's Cybersecurity Personnel**”), who shall be responding to the Client with regard to security matters related to the software or hardware operated by the Vendor and/or the Client for the provision of the Services (hereinafter referred to as “**Information System**”). At the same time, the Client shall appoint Client's Personnel responsible for responding to the Vendor with respect to Information System security related matters (hereafter referred to as “**Client's Cybersecurity Personnel**”). The names and contact information of both Parties' Cybersecurity Personnel shall be provided before the signing date of the Contract.

[网络安全人员] 服务提供商承诺指定服务提供商的人员，负责网络安全事项（以下称“**服务提供商网络安全人员**”），该等人员应就与服务提供商和/或客户为提供服务所操作的软件或硬件（以下称“**信息系统**”）相关的安全事宜为客户提供响应。同时，客户应指定客户的人员，负责就与信息系统安全相关事宜为服务提供商提供响应（以下称“**客户网络安全人员**”）。双方网络安全人员的姓名和联系信息应在合同签署日之前提供。

3 GENERAL CONTROL OF PROJECT DATA/项目数据的一般控制

- 3.1 [Integrity and Availability] The Vendor shall take all necessary measures to ensure the integrity and availability of the Project Data, to protect it from unexpected or illegal destruction, unexpected loss, modification, and unauthorized disclosure or acquisition by any third party (including but not limited to business partners, suppliers, contractors, and affiliates of the Vendor) without written authorization by Client, and to keep the exchange of the Project Data within the scope of the Vendor's Personnel on a need to know basis. The Vendor can delete or lock up the Project Data of Client when and only when receiving written authorization or explicit requirements from Client.

[完整性和可用性] 服务提供商应采取一切必要措施，确保项目数据的完整性和可用性，保护项目数据在未经客户书面授权的情况下免遭第三方（包括但不限于服务提供商的业务合作伙伴、供应商、承包商和关联公司）意外或非法破坏、意外丢失、修改以及未经授权的披露或获取，并将项目数据的交换限制在确需知晓的服务提供商人员范围内。服务提供商当且仅当收到客户书面授权或明确要求时方可删除或锁定项目数据。

- 3.2 [System Logs] The Vendor agrees to keep the operability and integrity of the system logs that are used to provide the Services and retained in its Information System for a period of twelve (12) months. Upon request by the Client the Vendor shall provide and/or reactivate those system logs in order to rebuild the control objective, which may include audits and security assessments, as well as for evidence of control

implementation as may be requested by regulatory authorities or a competent court or arbitration commission.

[系统日志] 服务提供商同意保持系统日志的可处理性和完整性，该等日志用于提供服务并在信息系统中保留十二（12）个月。经客户要求，服务提供商应提供和/或重新激活该等系统日志，以便重建控制目标，其中可能包括审计和安全评估，以及用作监管机构或主管法院或仲裁委员会可能要求的实施控制的证据。

- 3.3 [Data Backup] The Vendor agrees to create backups of the Project Data that have been input into the Information System whenever necessary for the provision of the Services or whenever notified by the Client. The Vendor shall take all necessary measures to ensure the confidentiality of the backup process.

[数据备份] 服务提供商同意在提供服务必要之时或收到客户通知时为已录入信息系统的的项目数据创建备份。服务提供商应采取一切必要措施，确保备份过程的保密性。

- 3.4 [Backup Storage] The Vendor shall store the backups in accordance with the requirements as set out in the Contract, this Information Security Conditions and the applicable laws and regulations. The Vendor shall test the reliability and integrity of the storage facilities and storage software on a regular basis by conducting recovery tests.

[备份存储] 服务提供商应按照合同、本信息安全条件和适用法律法规的要求存储备份。服务提供商应通过开展恢复测试的方式，定期测试存储设施和存储软件的可靠性和完整性。

- 3.5 [Retention Period] The retention period for the Project Data stored by the Vendor shall be subject to the period specified by the Client in writing. If the Client does not specify a certain retention period in writing, the Vendor shall take the shortest retention period required to achieve the purpose of the Contract. When the Project Data retention period expires, the Vendor shall inform the Client and delete or anonymize the Project Data as requested by the Client and under the applicable laws and regulations.

[保存期] 服务提供商存储项目数据的保存期应以客户书面规定的期限为准。如客户未以书面形式规定特定保存期，则服务提供商应采用达到合同的目的所需的最短保存期。当项目数据保存期届满时，服务提供商应通知客户，根据客户要求并依据适用的法律法规，删除项目数据或进行匿名化处理。

- 3.6 [Availability and Continuity of Information System] The Vendor agrees to take any and all necessary measures to ensure the availability of the Information System in accordance with the requirements agreed upon between the Parties. Furthermore, the Vendor shall take technical, organizational, and procedural measures as defined in this Information Security Conditions in order to ensure the system continuity or respond to Incidents.

[信息系统的可用性和连续性] 服务提供商同意根据双方约定的要求，采取任何及所有必要的措施，确保信息系统的可用性。此外，服务提供商应采取本信息安全条件中定义的技术、组织和程序措施，以确保系统连续性或对事件作出响应。

- 3.7 [Ensure Data Security] The Vendor shall take technical measures and other necessary measures to ensure data security, confidentiality, privacy and prevent the Project Data from any leakage, damage or loss during all operations required for providing the Services as stated under the Contract and as required under this Information Security Conditions. In case of any actual or potential data leakage, damage or loss, the Vendor shall immediately take remedial measures and inform the Client immediately.

[确保数据安全] 服务提供商应采取技术措施和其他必要措施，确保数据安全性、保密性、隐私性，防止项目数据在提供合同项下所述及本信息安全条件项下要求的服务所需的所有操作过程中发生任何泄露、损坏或丢失。如发生任何实际或潜在的数据泄露、损坏或丢失，服务提供商应立即采取补救措施并立即通知客户。

- 3.8 [Keep Project Data Confidential and Secure] The Vendor's Cybersecurity Personnel

shall keep all Project Data they are aware of when performing their duties strictly confidential and shall not leak, sell, or offer the information to any third party illegally. Moreover, the Vendor shall prevent its Vendor's Personnel from stealing or otherwise obtaining any Project Data illegally, or selling, providing any Project Data to third parties or otherwise using the Project Data illegally.

[保持项目数据的机密性和安全性] 服务提供商网络安全人员应对在履行职责时所知晓的所有项目数据严格保密，不得向任何第三方非法泄露、出售或提供信息。此外，服务提供商应防止服务提供商人员盗取或以其他方式非法获取任何项目数据，向第三方出售、提供任何项目数据，或以其他方式非法使用项目数据。

- 3.9 [Encryption] The Vendor shall encrypt the Project Data when transmitting and storing such data and carry out the encryption during the wireless telecommunication.

[加密] 服务提供商在传输和存储项目数据时应对该等数据进行加密，并在无线通信时进行加密。

- 3.10 [Destruction of Project Data] The Vendor shall destroy the media hardware which is used for storing Project Data and local software, if the relevant Information Systems are to be retired.

[销毁项目数据] 如相关信息系统即将退役，则服务提供商应销毁用于存储项目数据和本地软件的媒体硬件。

- 3.11 [Data Sharing] The Vendor shall not share the Project Data with any third parties including but not limited to business partners of the Vendor, distributors, and Affiliates or transfer the Project Data to them. If in the cause of the provision of the Services the Vendor is required to share or transfer the Project Data, the Vendor shall get the Client's written consent in advance and carry out de-identification and anonymization processes of Personal Data to be shared or transferred with the Project Data.

[数据共享] 服务提供商不得与任何第三方分享项目数据，包括但不限于服务提供商的业务合作伙伴、分销商和关联方，或向其移转项目数据。如因提供服务，服务提供商须分享或移转项目数据，则服务提供商应事先获得客户的书面同意，并对将随项目数据分享或转让的个人数据进行去身份化和匿名化处理。

- 3.12 [Data Separation] If the Information System contains Project Data and third party data, the Vendor shall reasonably separate Project Data from the third party data in terms of function modules and storage mediums.

[数据分离] 如信息系统中包含项目数据和第三方数据，则服务提供商应在功能模块和存储介质方面合理区分项目数据与第三方数据。

- 3.13 [System Separation] The Vendor shall refrain from creating interfaces between the Vendor's and the Client's Information Systems used by the Vendor and/or the Client to perform Services in accordance with the Contract without the prior written consent of the Client's Cybersecurity Personnel.

[系统分离] 事先未经客户网络安全人员书面同意，服务提供商应避免在服务提供商和/或客户用于根据合同执行服务的服务提供商信息系统和客户信息系统之间建立接口。

- 3.14 [Data Publication] If the Vendor is requested by the Client to publish Project Data as part of its Services, then it shall be responsible for managing the Project Data to be published. If the Vendor discovers that the Project Data is not in accordance with the applicable laws and regulations, the Vendor shall immediately stop the transmission and publication of the Project Data, remove the Project Data from public sources, prevent it from diffusion, maintain relevant records, and immediately inform the Client.

[数据发布] 如客户要求服务提供商将项目数据作为其服务的一部分予以发布，则服务提供商应负责管理有待发布的项目数据。如服务提供商发现项目数据不符合适用的法律法规，则服务提供商应立即停止传输和发布项目数据，从公共资源中去除项目数据，防止其扩散，保持相关记录，并立即通知客户。

- 3.15 [File Completeness] The Vendor undertakes to ensure the completeness of the Project Data related files when processing Project Data so as to provide sufficient and reasonable evidence to help the Client to defend in case of being sued by a third party or investigated by the government.

[文件完整性] 服务提供商承诺在处理项目数据时确保项目数据相关文件的完整性，以便提供充分、合理的证据，帮助客户在被第三方起诉或遭受政府调查时进行抗辩。

4 SECURITY PATCHES AND MAINTENANCE/安全补丁和维护

- 4.1 [Security Patch] The Vendor shall install operating systems and application security patches (hereinafter referred to as “**Security Patches**”) as recommended by secure and reliable software and hardware solution providers on all of the devices the Vendor is responsible for.

[安全补丁] 服务提供商应按照安全可靠的软硬件解决方案提供商的建议，在服务提供商负责的所有设备上安装操作系统和应用程序安全补丁（以下称“安全补丁”）。

- 4.2 [Maintenance] The Vendor shall be responsible for the continuous maintenance of the Information System and shall rectify and take all necessary measures to handle minor system warnings and update notifications. Any testing of Security Patch upgrades shall be conducted on backup systems to avoid damages to the Project Data or the Information System.

[维护] 服务提供商应负责持续维护信息系统，纠正并采取一切必要措施处理轻微的系统警告，并更新通知。安全补丁升级的任何测试都应在备份系统上进行，以避免损坏项目数据或信息系统。

- 4.3 [Security Patch Definition File] The Vendor shall update the definition files according to the Security Patch list on the server and communicate with any third party engaged by the Vendor for providing the Services to Client about the updated files and ensure that the third parties make corresponding updates or adjustments on their systems.

[安全补丁定义文件] 服务提供商应根据服务器上的安全补丁列表更新定义文件，并与服务提供商为向客户提供服务聘用的任何第三方沟通更新的文件，确保第三方在其系统上作相应的更新或调整。

- 4.4 [Service Hotline] The Vendor undertakes to provide e-mail addresses, telephone numbers, and respective service hours (24 hours/day) to allow the Client to provide the Client helpdesk Services and Incident handling Services.

[服务热线] 服务提供商承诺提供电子邮件地址、电话号码和相应的服务时间（24小时/天），以便客户提供客户服务台服务和事件处理服务。

5 PERSONAL DATA MANAGEMENT/个人数据管理

- 5.1 [Representations and Warranties] The Vendor represents and warrants to the Client that:

[陈述和保证] 服务提供商向客户陈述并保证如下：

- (a) it shall collect, handle, use, process, store or transfer Personal Data in accordance with the applicable laws and regulations.

服务提供商应根据适用法律法规收集、处理、使用、加工、存储或转移个人数据。

- (b) it collects, handles and uses Personal Data following the principle of legitimacy, justifiability and necessity. It shall publicize the rules for collecting, handling and using the Personal Data, its intent, methods, and the scope of its collection and use.

服务提供商依据合法性、合理性和必要性原则，收集、处理并使用个人数据。服务提供商应公布收集、处理和使用个人数据的规则、其意图、方法以及收集和使用的范围。

- (c) it will obtain expressed consent from the individuals whose Personal Data are collected (hereafter referred to as “**Data Subjects**”) for the collection, handling, and storing the Personal Data or for transmitting the Personal Data outside the PRC in accordance with the usage purposes. The Client has the right to request the Vendor to provide a Data Subject's consent or the evidence of the Data Subject's consent. If requested so by the Client, the Vendor shall authorize the Client to directly obtain the Data Subjects' consent.

服务提供商将根据使用目的，获取其个人数据被收集的个人（以下称“**数据主体**”）对收集、处理和存储个人数据或对向中国境外传输个人数据的明确同意。客户有权要求服务提供商提供数据主体的同意或数据主体同意的证明。如客户要求，则服务提供商应授权客户直接获得数据主体的同意。

- (d) it will not collect Personal Data that is not relevant to the Services it is providing to the Client. The Vendor shall comply and ensure that the Vendor's Personnel shall comply with the Client's Privacy Policy (available at <https://www.porsche.com/china/zh/legal-notice/>) and the requirements as set out by the Client when collecting and using the Personal Data.

服务提供商不会收集与其向客户提供的服务无关的个人数据。服务提供商在收集和使用个人数据时应遵守、并确保服务提供商人员遵守客户的隐私政策（可在以下网址查阅该等政策：<https://www.porsche.com/china/zh/legal-notice/>）以及客户规定的要求。

- (e) if the Vendor needs to obtain Personal Data indirectly through third party sources in order to provide Service as stipulated in the Contract to the Client, it shall indicate the source of the Personal Data and guarantee that all requirements as set out under the applicable laws and regulations have been followed through when obtaining those data, including but not limited to obtaining necessary consent of the Data Subjects and ensuring the legality of the information source. Furthermore, the amount of the Personal Data obtained indirectly shall be the minimum amount required.

如服务提供商需通过第三方来源间接获取个人数据，以便向客户提供合同中规定的服务，则服务提供商应指明个人数据的来源，并保证在获取该等数据时，已遵守适用法律法规项下的所有要求，包括但不限于获得数据主体的必要同意并确保信息来源的合法性。此外，间接获得的个人数据量应为所需的最少量。

- (f) if the Vendor needs to share with or transfer Personal Data to any third parties in order to provide Services as stipulated in the Contract to the Client, it shall ensure that the sharing and transfer comply with all the applicable laws and regulations, including but not limited to obtaining necessary consent of the Data Subjects and ensuring the security of the Personal Data.

如服务提供商需与任何第三方分享或向其移转个人数据，以便向客户提供合同中规定的服务，则服务提供商应确保分享和移转符合所有适用的法律法规，包括但不限于获得数据主体的必要同意并确保个人数据的安全性。

- 5.2 [Breach of Representations and Warranties] The Vendor shall be responsible for and represents and warrants the truth and accuracy in all material aspects as of the effective date of the Contract of all past and present information, representations as being provided by the Vendor, and the Vendor shall be deemed as being in breach of the Contract if any representation or warranty made herein is not true and accurate or is misleading. If the Client finds that the Vendor has violated any applicable laws, administrative regulations or the Client's Privacy Policy when collecting, handling, using, processing, storing or transferring Personal Data, the Client has the right to either request the Vendor to delete the Personal Data or terminate the Contract immediately. If the Client finds that the Personal Data is incorrect, the Client has the right to request the Vendor to correct the information. The Vendor shall immediately take measures to delete or correct the information.

[违反陈述和保证] 服务提供商应对服务提供商提供的所有过去和现在的信息及陈述截止合同生效日在所有重大方面的真实性和准确性负责，并且陈述并保证，其提供的所有过去和现在的信息及陈述截止生效日在所有重大方面均真实、准确；如服务提供商在本信息安全条件中所作的任何陈述或保证不真实、不准确或具有误导性，则服务提供商应被视为违反合同。如客户发现服务提供商在收集、处理、使用、加工、存储或移转个人数据时违反了任何适用法律、行政法规或客户的隐私政策，则客户有权要求服务提供商删除个人数据，或立即终止合同。如客户发现个人数据不正确，则客户有权要求服务提供商更正信息。服务提供商应立即采取措施删除或更正信息。

6 CROSS-BORDER TRANSMITTING OF DATA/跨境数据传输

- 6.1 [General] The Vendor shall store the Project Data within the territory of the PRC. If it is necessary to transmit Project Data overseas due to Client's business needs, the Vendor shall cooperate with the Client to carry out a security assessment in accordance with professional standards recognized by such profession as well as applicable laws and regulations. In case any Personal Data is transmitted overseas, the Vendor shall ensure that the consent of the Data Subjects has been obtained in accordance with the applicable laws and regulations.

[一般规定] 服务提供商应在中国境内存储项目数据。如因客户的业务需要而有必要向境外传输项目数据，则服务提供商应与客户合作，按照该行业认可的专业标准以及适用的法律法规，开展安全评估。如需向境外传输任何个人数据，则服务提供商应确保已根据适用法律法规获得了数据主体的同意。

7 DATA ACCESS CONTROL/数据访问控制

- 7.1 [Authorized Access] The Vendor can only access such Project Data as authorized by the Client. The Vendor shall disclose the Project Data to the Vendor's Personnel on a strict need-to-know basis. The Vendor shall grant authorized access and setup accounts in the Information System for the Vendor's Personnel as required for the provision of the Services and as instructed by the Client.

[授权访问] 服务提供商只可访问客户授权的项目数据。服务提供商应严格基于确需知晓的原则，向服务提供商人员披露项目数据。服务提供商应根据提供的服务的需要且按照客户的指示，在信息系统中向服务提供商人员授予授权访问权限并为其设置帐户。

- 7.2 [User Management Process] The Vendor shall implement a user management process and supporting system to manage the Vendor's Personnel authorized access to the Information Systems.

[用户管理流程] 服务提供商应实施用户管理流程和支持系统，管理服务提供商人员对信息系统的授权访问。

- 7.3 [Access Documentation] The Vendor shall implement a sound documentation process with regard to the accounts and access to the Project Data and the Information System including but not limited to a centralized access application process documenting and approving the reason for the granting of the access, the timeframe and usage purposes. The Vendor shall keep updated documentation records of all granted accounts and accesses. The Vendor shall provide those records to the Client upon request.

[访问文档] 服务提供商应对账号和对项目数据及信息系统的访问实施完善的文档记录流程，包括但不限于记录和批准授权访问原因、时间限制和使用目的的访问权限集中申请流程。服务提供商应对所有授权账号和访问情况保留更新的文档记录。服务提供商应在客户要求时向其提供该等记录。

- 7.4 [Secret Project Data] If the Client provides to the Vendor any Project Data qualified by the Client as secret data, the Vendor's Personnel shall not be granted any permanent access to those Project Data and the Vendor shall strictly follow the Client's handling instructions with respect to the Project Data.

[机密项目数据] 如客户向服务提供商提供客户确认为机密数据的任何项目数据，则不应授予服务提供商人员永久访问该等项目数据的权限，且服务提供商应严格遵循客户对项目数据的处理指示。

- 7.5 [Least Privilege Principle] The Vendor shall apply the principle of least privilege which states that only the minimum access necessary to perform operations for providing Services to the Client should be granted to the respective Vendor's Personnel, and such access should be granted only for the minimum amount of time necessary. The scope of the authorized access shall be determined by the Vendor's Cybersecurity Personnel and/or the Client's Cybersecurity Personnel in accordance with the responsibilities of the respective Vendor's Personnel.

[最低特权原则] 服务提供商应适用最低特权原则，该原则规定，仅对相关服务提供商人员授予为向客户提供服务进行操作所必要的最低访问权限，且该等访问权限应仅授予必要的最短时间。授权访问的范围应根据相关服务提供商人员的职责由服务提供商网络安全人员和/或客户网络安全人员确定。

- 7.6 [Virtual Private Networks] The Vendor shall use secure and reliable company virtual private network technologies for all devices remotely accessing the Client's and Vendor's company network.

[虚拟专用网] 服务提供商应对远程访问客户和服务提供商公司网络的所有设备使用安全可靠的公司虚拟专用网络技术。

- 7.7 [Clients Access] The Client shall at any time have the right and possibility to access and transmit the Project Data. The Vendor shall for this purpose grant the Client's Personnel access to the premises.

[客户访问] 客户应随时有权并且能够访问并传输项目数据。服务提供商应为此授予客户人员进入场所的权限。

- 7.8 [Separation of Duty] The administer IDs of the Information System shall not be granted to Vendor's Personnel without authorization of business operation user role.

[职责分离] 不得向具备业务操作员角色权限的服务提供商人员授予信息系统管理员的 ID。

8 ENTRY CONTROL TO VENDOR'S PREMISES/对进入服务提供商场所的控制

- 8.1 [Door Access Control System] The Vendor shall install an entry control system (e.g. fingerprint or access card lock) to identify the respective authorized Vendor's Personnel entering the premises where it is providing the Services to the Client, keeping the Information System and processing the Project Data to ensure that only authorized Vendor's Personnel can enter the premises. The Vendor shall keep an entry control system log for 12 months.

[门禁控制系统] 服务提供商应安装一套进入控制系统（如：指纹或门禁卡锁），识别进入向客户提供服务、存放信息系统并加工项目数据的场所的经授权的相关服务提供商人员，确保仅限经授权的服务提供商人员进入场所。服务提供商应将进入控制系统的日志保留 12 个月。

- 8.2 [Third Party Access] Third parties shall only be allowed to enter the Vendor's premises after they disclosed their purpose and identity to the Vendor's Personnel and after they were duly authorized by the Vendor's Personnel. The Vendor shall keep records of third parties who entered the premises listing the access times and purposes. The Client shall have the right to retrieve and check relevant records of the Vendor. The Vendor's Personnel shall not leave third parties unattended after they entered the premises.

[第三方访问] 第三方只有在向服务提供商人员说明其目的和身份并经服务提供商人员正式授权后，方可进入服务提供商的场所。服务提供商应保留进入场所的第三方人员的记录，列明访问时间和目的。客户有权检索并检查服务提供商的相关记录。服务提供商人员不得使第三方在进入场所后处于无人陪同的状态。

- 8.3 [Surveillance Cameras] Furthermore, the Vendor shall monitor all entrances to the premises as well as the main areas of the premises with surveillance cameras to record eventual unauthorized access. The Vendor shall keep the records of the surveillance cameras for at least ninety (90) days.

[监视摄像机] 此外，服务提供商应以监视摄像机监视场所的所有入口以及场所的主要区域，记录可能的未经授权进入的情况。服务提供商应将监控摄像机的记录保留至少九十（90）天。

- 8.4 [Unauthorized Access] If any unauthorized person is found to have entered the premises, the security guards and/or receptionist shall inquire into their identities. The Vendor's Personnel shall confirm the identities and shall immediately report to the security guards or the administration department in case of suspicions.

[未经授权进入] 如发现有任何未经授权的人士进入场所，安保人员和/或接待人员应询问其身份。服务提供商人员应确认其身份，并应在可疑情况下立即告知安保人员或行政部门。

- 8.5 [Inspection] In case of malfunction of the entry control system, the person who has not been strictly inspected and authorized by the Vendor shall not enter the premises of the Vendor where the Services are provided to the Client.

[检查] 如进入控制系统发生故障，则未经服务提供商严格检查并授权的人员不得进入向客户提供服务的服务提供商的场所。

9 THE VENDOR'S INFORMATION SYSTEM SECURITY MANAGEMENT/服务提供商信息系统的安全管理

- 9.1 [Response Plan] The Vendor shall implement emergency reaction processes for cybersecurity incidents and processes on how to react on security risks such as Information System vulnerabilities, computer viruses, network hacker attacks, network invasions and major interruptions of the operations of the Information System (hereinafter referred to as "**Incidents**").

[响应计划] 服务提供商应实施网络安全事件应急响应流程以及如何应对安全风险如：信息系统漏洞、计算机病毒、网络黑客攻击、网络入侵和信息系统操作的重大中断等（以下称“**事件**”）的流程。

- 9.2 [Training] The Vendor shall regularly (at least once a year) train the Vendor's Personnel on the emergency reaction processes in order to familiarize them with their responsibilities in the event of Incidents and as well as the Vendor's emergency reaction strategies and regulations.

[培训] 服务提供商应定期（至少每年一次）对服务提供商人员进行应急响应流程的培训，以使其熟悉其在事件发生时的责任以及服务提供商的应急响应策略和规定。

- 9.3 [Management and Monitoring] The Vendor shall comply with the applicable laws and regulations with regard to the Information Systems security management, carry out cybersecurity certifications, inspections and risk assessments, and inform the Client about any discovered system vulnerabilities, computer viruses, network attacks, network invasion and other major system alerts.

[管理和监控] 服务提供商应遵守与信息系统安全管理相关的适用法律法规，执行网络安全认证、检查和风险评估，并告知客户任何已发现的系统漏洞、计算机病毒、网络攻击、网络入侵和其他重大系统警报。

- 9.4 [Network Products and Services] The network products and services provided to the Client by the Vendor shall meet the mandatory requirements of relevant national standards. The Vendor's providers of the network products and services for the Client shall not set up malware. If its network products and services are found to have risks such as security defects and vulnerabilities, the Vendor shall immediately take remedial measures and inform the Client in time.

[网络产品和服务] 服务提供商向客户提供的网络产品和服务应符合相关国家标准的强制性要求。服务提供商为客户提供网络产品和服务的人员不得设置恶意软件。如服务提供商发现其网络产品和服务存在安全缺陷和漏洞等风险，则应立即采取补救措施并及时通知客户。

10 SECURITY INCIDENTS AND MITIGATION/安全事件及补救

- 10.1 [Incidents] In case of Incidents, the Vendor shall inform the Client immediately. If the Incident has not been discovered immediately, the Vendor shall inform the Client immediately after discovering the Incident, and describe the cause, the intensity and the occurred and possible damages.

[事件] 如发生事件，则服务提供商应立即通知客户。如果事件未立即被发现，则服务提供商应在发现事件后立即通知客户，并说明导致事件的起因、强度以及已造成的和可能造成的损害。

- 10.2 [Mitigation Measures] The Vendor shall take immediately all available and appropriate measures to mitigate the damages that may be caused by the Incident. The Vendor shall inform the Client about the planned mitigation measures and implementation plan, costs and time lines. The Vendor shall install Security Patches within 24 hours on the respective devices that support the Information Systems of the Vendor.

[补救措施] 服务提供商应立即采取一切可行且适当的措施，减轻事件可能造成的损害。服务提供商应告知客户计划的补救措施和实施计划、成本和时间表。服务提供商应在 24 小时内支持服务提供商信息系统的相应设备上安装安全补丁。

- 10.3 [Third Party Involvement] If repair measures taken by the Vendor to mitigate the damages caused by the Incident do not have a sufficient effect or no repair measures can be taken, the Vendor shall follow the recommended measures and solutions as provided by relevant third party software and hardware solution providers. If such measures require disabling one of the key Information System functions, then the Vendor shall undertake to take other reasonable measures to avoid the expansion of the damages that may be caused by the Incident to other Information System functions and immediately inform the Client.

[第三方参与] 如服务提供商为减轻事件造成的损害而采取的修复措施未能发挥充分效用，或服务提供商未采取修复措施，则服务提供商应遵循相关第三方软件、硬件解决方案提供商给予的建议措施和解决方案。如该等措施要求禁用信息系统的一个关键功能，则服务提供商应承诺采取其他合理措施，避免事件可能造成的损害扩大至信息系统的其他功能，并应立即通知客户。

- 10.4 [Investigation] The Vendor and the Client agree to cooperate in order to allow both Parties to discuss and determine the source of the Incident. If the Parties are not able to determine the reason and source of the Incident, the Parties shall engage an independent expert to conduct a diagnosis of the Incident.

[调查] 服务提供商和客户同意互相配合，以便双方能讨论并确定事件的根源。如双方无法确定事件的原因和根源，则双方应聘请独立专家对事件进行诊断。

- 10.5 [Expense and Liability] If the Incident was caused by the Vendor, the expenses of the diagnosis and the mitigation and repair measures shall be borne by the Vendor. The Vendor shall also bear any and all of the liabilities for the losses caused by such Incident.

[费用和责任] 如事件系服务提供商所造成的，则诊断以及补救和修复措施的费用应由服务提供商承担。服务提供商还应承担该等事件导致的任何及所有损失责任。

11 ONSITE SUPPORT AND ACCESS TO CLIENT INFORMATION SYSTEMS/现场支持和访问客户信息系统

- 11.1 [Onsite Support] If the Vendor's Personnel is requested to provide Services through onsite support at the Client's premises or by accessing Information Systems of the Client remotely, the Vendor shall ensure that the Vendor's Personnel acknowledges and agrees on the terms and conditions as set out in the "PCN Third-Party Code of

Conduct” as provided by the Client as well as the Confidentiality Undertaking (if applicable) and follow all instructions and internal processes and policies of the Client.

[现场支持] 如要求服务提供商人员通过在客户场所的现场支持或通过远程访问客户的信息系统提供服务，则服务提供商应确保服务提供商人员知晓并同意客户提供的“保时捷中国第三方行为准则”及保密承诺（如适用）中所列的条款和条件，并遵循客户的所有指示以及内部流程和政策。

- 11.2 [Notification] The Vendor shall inform the Client at least five (5) working days prior to the Vendor's Personnel first onsite support day at the Client's premises or first day of accessing the Information Systems of the Client, so as to allow the Client to effectively manage and prepare the authorization requirements and systems to enter into the Client's premises and the access to the Information Systems of the Client and the Project Data. Furthermore, the Vendor shall notify the Client at least five (5) working days before the last onsite support day so as to allow the Client to withdraw all accesses and authorizations. Copies of the notification shall be sent to the respective Client's Cybersecurity Personnel and Vendor's Cybersecurity Personnel.

[通知] 服务提供商应在服务提供商人员在客户场所提供现场支持服务的第一天或远程访问客户信息系统的的第一天前至少五（5）个工作日通知客户，以便客户能有效管理并准备进入客户场所以及访问客户信息系统和项目数据的授权要求和系统。此外，服务提供商应在现场支持的最后一天前至少五（5）个工作日通知客户，以便客户撤销所有访问权限和授权。通知文本应发送给相应的客户网络安全人员和服务提供商网络安全人员。

12 GENERAL RESPONSIBILITIES OF VENDOR/服务提供商的一般责任

- 12.1 [Upgrades and Changes] If the Vendor is requested by the Client to develop upgrades or make changes to the Information Systems, the Vendor shall test those developments in separated testing environments and only implement them into the production environment after the successful passage of the testing and approval by the Client.

[升级和更改] 如客户要求服务提供商对信息系统开发升级或作出更改，则服务提供商应在分离的测试环境中测试该等开发，并仅在成功通过测试并经客户批准后，方可将该等开发实施到生产环境中。

- 12.2 [Standards and Qualifications] The Vendor undertakes to acquire and maintain, at its own expense, information security qualifications and standards (e.g. SSA E16 standard and/or ISAE 3402 and/or ISO 27001 and/or PCI DSS and/or VDA TISAX) as required and approved by the Client for the period as the Services are provided to the Client. The Vendor undertakes to provide all of the qualification certificates to Client before the signing date of the Contract and whenever requested by the Client.

[标准和资质] 服务提供商承诺在向客户提供服务期间，自费获得并维持客户要求并批准的信息安全资质和标准（如：SSA E16 标准和/或 ISAE 3402 和/或 ISO 27001 和/或 PCI DSS 和/或 VDA TISAX）。服务提供商承诺在合同签署日之前以及客户要求的任何时候向客户提供所有资质证书。

- 12.3 [Government Authority Actions] In case the Vendor is approached by the Cyberspace Administration of China and the competent authorities on the supervision, inspection, and security assessment for implemented cybersecurity measures (hereafter referred to as the “**Chinese Cybersecurity Authorities**”), the Vendor shall immediately inform the Client and coordinate with the Client the further actions.

[政府部门行动] 如国家互联网信息办公室以及对实施的网络安全措施进行监督、检查和安全评估的主管部门（以下称“**中国网络安全部门**”）联系服务提供商，则服务提供商应立即通知客户，并就后续行动与客户互相配合。

- 12.4 [Support] If the Chinese Cybersecurity Authorities are approaching the Client, the Vendor shall make every effort to provide the Client with all support and assistance as requested by the Client.

[支持] 如中国网络安全部门联系客户，则服务提供商应尽一切努力，为客户提供客户所要求的所有支持和协助。

- 12.5 [Security Maintenance] The Vendor shall provide continuous security maintenance and shall not unilaterally stop providing security maintenance within the time period as stipulated under the applicable laws and regulations or as agreed upon by the Parties.

[安全维护] 在适用法律法规规定或双方约定的期间内，服务提供商应提供持续的安全维护，且不得单方面停止提供安全维护。

13 SECURITY AUDIT/安全审计

- 13.1 [Right to Audit] During the term of the Contract and at any time within two (2) years after its termination or expiry, the Client shall have the right to conduct an information security assessment and therefore access the Vendors premises, Information Systems, as well as all environments necessary to access for conducting the audit. The Vendor shall provide all information with regard to the matters which are subject to this Information Security Conditions, including the undertaking of compliance with the requirements and policies stated under this Information Security Conditions, as well as any representation, warranty, undertaking or requirement made by the Vendor under this Information Security Conditions.

[审计权] 在合同的期限内以及在合同终止或期满后两（2）年内的任何时间，客户有权开展信息安全评估，并因此进入服务提供商的场所、访问其信息系统和对开展审计而言必须进入的所有环境。服务提供商应提供与本信息安全条件标的相关的事项的所有信息，包括承诺遵守本信息安全条件项下所述要求和政策，以及服务提供商在本信息安全条件项下作出的任何陈述、保证、承诺或要求。

- 13.2 [Notice] The Client shall give not less than ten (10) days' written notice to the Vendor and the audit shall take place during normal business hours.

[通知] 客户方应不少于十（10）天提前书面通知服务提供商，且审计应在正常工作时间内进行。

- 13.3 [Reasonable Assistance] The Vendor shall fully cooperate in any such audit including by making its books, records and personnel relating to or pertaining to the Contract available to the Client or its appointed auditor. Such records shall include, but not be limited to, accounting records, written policies and procedures, Sub-Contractor or other third-party service provider files, all paid vouchers, other reimbursement supported by invoices, insurance documents and correspondence.

[合理协助] 服务提供商应充分配合任何该等审计，包括向客户或其指定的审计方提供与合同相关或所涉及的账簿、记录和人员。该等记录应包括但不限于会计记录、书面政策和程序、分包商或第三方服务提供商的文件、所有付款凭证、以发票、保险文件和往来信函作为证明的其他偿付请求。

- 13.4 [Audit Findings] If the audit discovers that the Vendor has violated (or contributed to the violation of) applicable legal or regulatory requirements or undertaking of compliance with the requirements and policies stated under this Information Security Conditions or any other representation, warranty, undertaking or requirement under the Contract, the Client shall be entitled to claim damages suffered by the Client.

[审计发现] 如审计发现服务提供商违反了（或促成了违反）适用的法律或监管要求、遵守本信息安全条件项下所述要求和政策的承诺、或合同项下的任何其他陈述、保证、承诺或要求，则客户有权就遭受的损害主张赔偿。

- 13.5 [Costs of the Audit] The cost of the audit will be borne by the Client unless the audit reveals a breach, in which case the Vendor shall bear the cost of the audit. The Vendor shall also bear any and all cost for rectifying the audit findings and implementing the measures as instructed by the Client.

[审计费用] 审计费用将由客户承担，但如果审计发现服务提供商存在违约行为，则服务提供商应承担审计费用。服务提供商还应承担纠正审计发现及实施客户指示的措施的任何及所有费用。

14 VENDOR'S LIABILITY/服务提供商的责任

- 14.1 [General] If the Vendor violates this Information Security Conditions or any applicable laws and regulations, the Client has the right to suspend the Project Data exchange and shall have the right to terminate the Contract. The Vendor shall indemnify and hold the Client harmless against any claims, demands, lawsuits, liabilities, damages or expenses, including reasonable attorney fees, arising from the Vendors violations of this Information Security Conditions.

[一般规定] 如服务提供商违反本信息安全条件或任何适用的法律法规，则客户有权暂停项目数据交换，并有权终止合同。服务提供商应就由服务提供商违反本信息安全条款与条件产生的任何权利主张、要求、诉讼、责任、损害赔偿或费用（包括合理的律师费）补偿客户，并使客户免于遭受损害。

- 14.2 [Exemption] The Vendor has the right to apply for exemption in case of the occurrence and use of illegal data resulting from performing the Contract. The resulting compensation expenses (direct losses only) are to be borne by the Client provided that the Vendor and the Vendor's Personnel do not violate this Information Security Conditions and other agreements with the Client (including but not limited to a Non-Disclosure Agreement and the Confidentiality Undertaking, if any) as well as the provisions of the Client's internal rules and requirements with respect to data protection.

[豁免] 如因执行合同而产生并使用了非法数据，则服务提供商有权申请豁免。由此产生的赔偿费用（仅限直接损失）将由客户承担，前提是服务提供商和服务提供商人员未违反本信息安全条件、与客户的其他协议（包括但不限于保密协议和保密承诺（如有））以及客户关于数据保护的内部规则和要求的规定。

15 SUB-CONTRACTING/分包

- 15.1 [General] The Vendor shall ensure that the Sub-Contractors comply with all of the applicable Vendor's obligations set out in this Information Security Conditions when performing the Contract as engaged by the Vendor.

[一般规定] 服务提供商应确保分包商在受服务提供商聘用履行合同时，遵守本信息安全条件中规定的所有适用的服务提供商的义务。

16 SEVERABILITY AND SURVIVAL/可分割性和存续

- 16.1 [Severability] If any term or provision of this Information Security Conditions is found by a court or arbitration commission of competent jurisdiction to be invalid, illegal or otherwise unenforceable, the same shall not affect the other terms or provisions hereof or the whole of this Information Security Conditions, but such term or provision shall be deemed modified to the extent necessary in the court's or arbitration commission's opinion to render such term or provision enforceable, and the rights and obligations of the Parties shall be construed and enforced accordingly, preserving to the fullest permissible extent the intent and agreements of the Parties herein set forth.

[可分割性] 若本信息安全条件的任何条款或规定被有管辖权的法院认定为无效、非法或不可强制执行，则该情形不影响本信息安全条件合同的其他条款或规定或本信息安全条件合同整体，但是该等条款或规定应被视为已作出了依法院意见使其具有强制执行力而须作出的修改，而且，双方的权利和义务也应相应地作出解释和予以强制执行，以最大限度地保持合同中所载的双方意图和约定。

- 16.2 [Survival] Articles 13 and 14 of this Information Security Conditions shall survive the termination or expiration of the Contract.

[存续] 本信息安全条件的第 13 和 14 条应在合同终止或届满后存续有效。